



**Economic & Planning
Systems, Inc.**
The Economics of Land Use

DEVELOPMENT IMPACT FEE ANNUAL REPORT FISCAL YEAR 2022–23

FINAL REPORT

Prepared for:
City of Oakdale

Prepared by:
Economic & Planning Systems, Inc.

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EPS #242010

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1. Introduction and Background

In California, State legislation sets certain legal and procedural parameters for the charging of development impact fees. This legislation was passed as AB1600 by the California Legislature and is now codified as California Government Code Sections 66000 through 66008 (“Mitigation Fee Act”). This State law went into effect on January 1, 1989.

Requirements for Development Impact Fee Reporting

The Mitigation Fee Act imposes certain accounting and reporting requirements with respect to the fees collected. The fees must be deposited in a special account to avoid comingling the fees with the City’s other revenues or funds. Interest on each development fee fund or account must be credited to that fund or account and used only for those purposes for which the fees were collected.

The Mitigation Fee Act also requires any local agency that imposes development impact fees to prepare an annual report and a five-year report that provide specific information about those fees. This report serves both of those functions and has been prepared for the City of Oakdale for the fiscal year (FY) ended June 30, 2024 in accordance with the provisions of the California Government Code Section 66006 (b) and 66001 (d).

Annual Report

California Government Code Section 66006 (b) requires each local agency that imposes Development Impact Fees under the Mitigation Fee Act to prepare an annual report providing specific information about those fees for the previous fiscal year. Specifically, Section 66006 (b) requires that for each separate fund, the local agency shall make available to the public the information shown below for the most recent fiscal year.

- 66006 (b) (1) (A): A brief description of the type of fee in the account or fund.
- 66006 (b) (1) (B): The amount of the fees.
- 66006 (b) (1) (C): The beginning (July 1) and ending (June 30) balance of a particular impact fee fund.
- 66006 (b) (1) (D): The amount of the fees collected and interest earned by fund.

- 66006 (b) (1) (E): An identification of each public improvement upon which fees were expended and the amount of expenditures on each improvement including the total percentage of the cost of the public improvement that was funded with fees.
- 66006 (b) (1) (F): An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement.
- 66006 (b) (1) (G): A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended; and, in the case of an interfund loan, the terms of the loan, including the repayment schedule for the loan, and the rate of interest that the account or fund will receive on the loan.
- 66006 (b) (1) (H): A summary of any refunds made, and their respective amount, due to sufficient funds being collected to complete financing of scheduled public improvements and the amount of reallocation of funds made due to administrative costs of refunding unexpended revenues exceeding the amount to be refunded.

State law requires the City to prepare and make available to the public the above information within 180 days after the last day of each fiscal year. The City Council must review the annual report at a regularly scheduled public meeting not less than fifteen days after the information is made available to the public.

2. Annual Report

Description of Impact Fee Programs

66006(b)(1)(A)

The City of Oakdale Capital Facilities Fee (CFF) Program Area includes land zoned for residential and nonresidential uses, totaling approximately 900 acres of land uses. In the 2016 nexus study land use estimates The CFF Program is a citywide fee program that funds new and expanded infrastructure and facilities needed to serve new development in the City. The CFF Program provides funding for transportation, general government, fire, and police facilities. In 2016, the CFF Nexus Study was prepared to update the CFF fees based on new land use and growth projections as well as updated facility needs and costs.

The components of the CFF Program are summarized below:

Streets

The purpose of the Streets/Public Works Fee is to fund streets-related capital costs attributable to the impact from new development. The Streets/Public Works Fee will be used to fund the construction of street improvements identified by the City as necessary to maintain an adequate level of service as the City grows. The streets fee revenue from the Fee Program is used to construct street and intersection improvements identified in the City's Street Master Plan.

Wastewater

The purpose of the Wastewater Fee is to fund wastewater-related capital costs attributable to the impact from new development in the Fee Program Area. The wastewater fee will be used to fund the construction or purchase of wastewater facilities identified by the City as necessary to serve new development in the Fee Program Area. The wastewater fee revenue from the Fee Program is used construct the wastewater facilities identified in the City's Wastewater Master Plan.

Water

The purpose of the Water Fee is to fund water-related capital costs attributable to the impact from new development in the Fee Program Area. The Water Fee will be used to fund the construction or purchase of water facilities and a portion of the cost of a water conservation program identified by the City as necessary to serve new development. The water fee revenue from the Fee Program is used to construct the water facilities identified in the City's Water Master Plan like the construction or purchase of water facilities and a portion of the cost of a water conservation program.

Storm Drainage

The purpose of the Storm Drainage Fee is to fund storm drainage-related capital costs attributable to the impact from new development. The Storm Drainage Fee will be used to fund the construction or purchase of storm drainage facilities identified by the City as necessary to serve the Fee Program Area. The storm drainage fee revenue from the Fee Program is used to construct the storm drainage facilities identified in the City's Storm drainage Master Plan

Police

The purpose of the Police Fee is to fund police-related capital costs attributable to the impact from new development. The Police Fee will be used to fund the construction or purchase of additional police facilities, a fair-share portion of an animal shelter and vehicles needed to serve new development. The police fee revenue from the Fee Program is used to construct or purchase police facilities, an animal shelter, vehicles, and equipment will ensure that these facilities will be available to provide an adequate level of service as the City grows.

Fire

The purpose of the Fire Fee is to fund fire-related capital facilities attributable to the impact from new development. The Fire Fee will be used to fund the construction or purchase of fire facilities identified by the City as necessary to serve new development in the Fee Program Area. The fire fee revenue from the Fee Program is used to construct or purchase fire facilities, apparatus, and vehicles.

Parks and Recreation Facilities

The purpose of the Parks and Recreation Fee is to fund parks and recreation-related capital costs attributable to the impact from new development. The Parks and Recreation Fee will be used to fund the construction or purchase of park and recreation facilities and land identified by the City to serve new development. The parks and recreation facilities fee revenue from the Fee Program is used to construct or purchase park land and improvements.

General Government Facilities

The purpose of the General Government Fee is to fund general government capital costs attributable to the impact from new development. The General Government Fee will be used to fund the construction or purchase of general government facilities identified by the City as necessary to serve new development. The general government facilities fee revenue from the Fee Program is used to construct or purchase general government facilities and vehicles.

Current Impact Fee Schedules

66006(b)(1)(B)

shows the current fee schedule for residential land uses for the CFF Fee Program.

Table 2-1 shows the current fee schedule for residential land uses for the CFF Fee Program. These fees are effective from July 1, 2024, through June 30, 2025.

Table 2-1. CFF Program Development Impact Fee Summary - Residential

Facility Type	Residential Land Uses	
	Single-Family	Multifamily
	<i>per dwelling unit</i>	<i>per dwelling unit</i>
Streets/Public Works	\$4,865	\$3,227
Sewer	\$2,009	\$1,659
Water	\$7,282	\$2,438
Storm	\$1,027	\$494
Police	\$982	\$655
Fire	\$1,230	\$820
Parks & Recreation	\$8,917	\$5,945
General Government	\$1,066	\$711
Administration	\$548	\$319
Total	\$27,926	\$16,268

Table 2-2. CFF Program Development Impact Fee Summary - Nonresidential

Facility Type	Nonresidential Uses		
	Retail	Office/Commercial	Industrial
	<i>per Bldg. SF</i>	<i>per Bldg. SF</i>	<i>per Bldg. SF</i>
Streets/Public Works	\$5.42	\$4.61	\$2.77
Sewer	\$0.89	\$0.31	\$0.17
Water	\$1.62	\$0.90	\$0.51
Storm	\$0.83	\$0.64	\$0.69
Police	\$0.25	\$0.33	\$0.14
Fire	\$0.31	\$0.41	\$0.18
Parks & Recreation	n/a	n/a	n/a
General Government	\$0.27	\$0.36	\$0.16
Administration	\$0.19	\$0.15	\$0.09
Total	\$9.78	\$7.71	\$4.71

Fee Fund Summary

66006(b)(1)(C), (D), and (E)

The following section details the CFF fund activity for Fiscal Year 2022-23 and responds to Government Code Section 66006(b)(1)(C), (D), and (E) for the Capital Facilities Fee Program. It summarizes the beginning balance, revenues, expenses, and ending balance for each of the eight components. During the fiscal year, revenue was derived from interest earnings and CFF Program DIFs. Expenses were incurred during the 2022-23 Fiscal Year for the following items.

Table 2-3. Capital Facilities Fee Fund Summary (FY 2022-23)

Item	Streets	Sewer	Water	Storm	Police	Fire	Park	Government
Revenues	\$377,809	\$127,838	\$300,737	\$67,820	\$54,711	\$68,618	\$393,961	\$59,331
Expenditures								
Loan Repayments	\$9,000	-	-	-	-	-	-	-
Capital Improvements	\$134,807	\$661,338	\$37,806	\$26,918	-	-	\$126,240	\$7,435
Interfund Transfers	-	-	-	-	-	-	-	-
Other Expenditures	-	-	-	-	-	-	\$738	-
Total Expenditures	\$143,807	\$661,338	\$37,806	\$26,918	-	-	\$126,978	\$7,435
Revenues Over (Under) Expenditures	\$234,002	(\$533,500)	\$262,931	\$40,902	\$54,711	\$68,618	\$266,983	\$51,896
Beginning Balance	\$95,329	\$1,005,954	\$3,557,561	\$579,552	\$14,601	(\$578,246)	\$4,640,820	\$332,630
Ending Balance	\$329,331	\$472,454	\$3,820,492	\$620,454	\$69,312	(\$509,628)	\$4,907,803	\$384,526

Source: City of Oakdale

Streets

- Annual repayment for the Wakefield Extension Loan. The Wakefield Extension Loan provided funds (from Stanislaus County to the City) for the construction of Gregor to Wakefield Avenues to improve access to the 60-acre Oakdale Business Park. The construction project is 100% completed, and repayment will be completed in FY 2023-24.
- Reimbursements to Tesoro Homes associated with the Oakdale Landholding LLC. Reimbursement Agreement, dated 11/3/14 - Related to the East "F" Street Corridor Specific Plan and identified as on Table B-1 in the 2016 CFF Updated Nexus Study as Stearns Rd. (North Project Boundary to SR 108/120) under "CFF Obligations -Reimbursement for Facilities Oversizing."
- Reimbursement to Frontier Land Companies, doing business as FCB Homes, for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum to Reimbursement Agreement, adopted by the City Council September 21, 2015.

Wastewater

- Sewer River Crossing.
- Reimbursement to Frontier Land Companies, doing business as FCB Homes, for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum to Reimbursement Agreement, adopted by the City Council September 21, 2015.
- Reimbursements to Tesoro Homes associated with the Oakdale Landholding LLC. Reimbursement Agreement, dated 11/3/14 - Related to the East "F" Street Corridor Specific Plan and identified as on Table B-1 in the 2016 CFF Updated Nexus Study as 12" Sewer Trunk (D Street) under "CFF Obligations - Reimbursement for Facilities Oversizing."
- Costs incurred associated with the Sewer Master Plan.
- Costs incurred for design of East F St. wastewater utilities.

Water

- GIS Implementation.
- Costs incurred were associated with the Water Master Plan Update and the Urban Water Master Plan.
- Costs incurred for design of East F St. water utilities.

Storm Drainage

- Reimbursement to FCB Homes for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum to Reimbursement Agreement, adopted by the City Council September 21, 2015.
- Reimbursements to Tesoro Homes associated with the Oakdale Landholding LLC. Reimbursement Agreement, dated 11/3/14 - Related to the East "F" Street Corridor Specific Plan and identified on Table B-1 in the 2016 CFF Updated Nexus Study as Basin/French Drain & Storm Drainage Facilities under "CFF Obligations - Reimbursement for Facilities Oversizing."

Police

- No expenditures were made from the Police Fee Fund in Fiscal Year 22-23.

Fire

- No expenditures were made from the Fire Fee Fund in Fiscal Year 22-23.

Parks

- Costs incurred associated with the Gerger Basin Master Plan.
- Costs incurred associated with gymnasium design.
- Fish Park Tennis Courts.
- Land improvements.

General Government

- Reimbursement to FCB Homes for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum to Reimbursement Agreement, adopted by the City Council September 21, 2015.

Approximate Date of Construction

66006(b)(1)(F)

Section 66006 (b) (1) (F) of the Mitigation Fee Act requires an identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement. The City of Oakdale has determined that it has not collected sufficient funds to complete financing on an incomplete public improvement.

Interfund Transfers or Loans

66006(b)(1)(G) and 66013(d)(5)

Section 66006 (b) (1) (G) of the Mitigation Fee Act requires a description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended; and, in the case of an interfund loan, the terms of the loan, including the repayment schedule for the loan, and the rate of interest that the account or fund will receive on the loan.

In the fiscal year ended June 30, 2023, there were no interfund transfers or loans made from the CFF Funds.

Summary of Refunds

66006(b)(1)(H)

Section 66006 (b) (1) (H) of the Mitigation Fee Act requires a summary of any refunds made, and their respective amount, due to sufficient funds being collected to complete financing of scheduled public improvements and the amount of reallocation of funds made due to administrative costs of refunding unexpended revenues exceeding the amount to be refunded.

At this time, all fees collected have been earmarked for current or future capital projects necessary to maintain the current levels of service to serve new development. There were no refunds made from any of the impact fee or capacity fee funds.

Appendix



Appendix A

Capital Facilities Fee Program Fund Activity

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Table A-1
Oakdale Annual Report
Streets Fee Fund Summary (FY 2022-23)

Item	Streets
Revenues	
Interest Income	\$2,287
Unrealized Gains (Losses)	(\$16,805)
Development Fees	\$392,327
Total Revenues	\$377,809
Expenditures	
Wakefield Extension Loan	\$9,000
Capital Improvements	
FCB Homes Reimbursement	\$53,392
Tesoro Homes Reimbursement	\$81,415
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	\$143,807
Revenues Over (Under) Expenditures	\$234,002
Beginning Balance	\$95,329
Ending Balance	\$329,331

Source: City of Oakdale

Table A-2
Oakdale Annual Report
Streets Expenditures (FY 2022-23)

Improvement Name		FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures				
Wakefield Extension Loan	[1]	\$9,000	\$293,000	3%
FCB Homes Reimbursement	[2]	\$53,392	\$4,227,553	1%
Tesoro Homes Reimbursement	[3]	\$81,415	\$1,024,900	8%
Total Capital Expenditures		<u>\$143,807</u>		

Source: City of Oakdale

- [1] The Wakefield Extension Loan provided funds loaned from Stanisluas County to the City of Oakdale for the construction of Gregor to Wakefield Avenues to improve access to the 60-acre Oakdale Business Park. The construction project is 100% completed, and repayment will be completed in FY 2023-24.
- [2] Reimbursement to Frontier Land Companies, doing business as FCB Homes, for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum, adopted by the City Council September 21, 2015. Total reimbursment owed is equal to \$4,227,552.57.

Table A-3
Oakdale Annual Report
Sewer Fee Fund Summary (FY 2022-23)

Item	
Revenues	
Interest Income	\$10,503
Unrealized Gains (Losses)	\$7,100
Development Fees - Sewer	\$56,340
Development Fees - Wastewater	\$53,895
Total	\$127,838
Expenditures	
Loan Repayments	-
Capital Improvements	
Sewer River Crossing	\$624,220
Sewer Master Plan	\$14,605
E F St Utility Design	\$20,777
Tesoro Homes Reimbursement	\$1,736
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	\$661,338
Revenues Over (Under) Expenditures	(\$533,500)
Beginning Balance	\$1,005,954
Ending Balance	\$472,454

Source: City of Oakdale

Table A-4
Oakdale Annual Report
Sewer Expenditures (FY 2022-23)

Improvement Name	FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures			
Sewer River Crossing	\$624,220	\$3,125,000	20%
Sewer Master Plan	\$14,605	\$15,000	97%
E F St Utility Design	\$20,777	\$5,500,000	0%
Tesoro Homes Reimbursement [1]	\$1,736	\$116,501	1%
Total Capital Expenditures	\$661,338		

Source: City of Oakdale

[1] Reimbursements to Tesoro Homes associated with the Oakdale Landholding LLC. Reimbursement Agreement, dated 11/3/14 - Related to the East "F" Street Corridor Specific Plan and identified as on Table B-1 in the 2016 CFF Updated Nexus Study as 12" Sewer Trunk (D Street) under "CFF Obligations - Reimbursement for Facilities Oversizing."

Table A-5
Oakdale Annual Report
Water Fee Fund Summary (FY 2022-23)

Item	
Revenue	
Interest Income	\$51,343
Unrealized Gains (Losses)	(\$50,804)
Development Fees - Wells	-
Development Fees - Lines	\$300,198
Total	\$300,737
Expenditures	
Loan Repayments	-
Capital Improvements	
GIS Implementation	\$253
Water Master Plan Update	\$19,036
E F St Utility Design	\$18,517
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	\$37,806
Revenues Over (Under) Expenditures	\$262,931
Beginning Balance	\$3,557,561
Ending Balance	\$3,820,492

Source: City of Oakdale

Table A-6
Oakdale Annual Report
Water Expenditures (FY 2022-23)

Improvement Name	FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures			
GIS Implementation	\$253	\$8,700,000	0%
Water Master Plan Update	\$19,036	\$8,700,000	0%
E F St Utility Design	\$18,517	\$5,500,000	0%
Total Capital Expenditures	\$37,806		

Source: City of Oakdale

Table A-7
Oakdale Annual Report
Storm Drainage Fee Fund Summary (FY 2022-23)

Item	
Revenues	
Interest Income	\$9,378
Unrealized Gains (Losses)	(\$8,159)
State Grants	-
Development Fees	\$66,601
Total	\$67,820
Expenditures	
Loan Repayments	-
Capital Improvements	
FCB Homes Reimbursement	\$8,305
Tesoro Homes Reimbursement	\$18,613
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	\$26,918
Revenues Over (Under) Expenditures	\$40,902
Beginning Balance	\$579,552
Ending Balance	\$620,454

Source: City of Oakdale

Table A-8
Oakdale Annual Report
Storm Expenditures (FY 2022-23)

Improvement Name	FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures			
FCB Homes Reimbursement [1]	\$8,305	\$4,227,553	0%
Tesoro Homes Reimbursemen [2]	\$18,613	\$460,000	4%
Total Capital Expenditures	<u>\$26,918</u>		

Source: City of Oakdale

[1] Reimbursement to Frontier Land Companies, doing business as FCB Homes, for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum, adopted by the City Council September 21, 2015. Total reimbursment owed is equal to \$4,227,552.57.

Table A-9
Oakdale Annual Report
Police Fee Fund Summary (FY 2022-23)

Item	
Revenue	
Interest Income	\$672
Unrealized Gains (Losses)	(\$852)
Development Fees	\$54,891
Total	\$54,711
Expenditures	
Loan Repayments	-
Capital Improvements	-
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	-
Revenues Over (Under) Expenditures	\$54,711
Beginning Balance	\$14,601
Ending Balance	\$69,312

Source: City of Oakdale

Table A-10
Oakdale Annual Report
Police Expenditures (FY 2022-23)

Improvement Name	FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures	\$0	n/a	n/a
Total Capital Expenditures	<u><u>\$0</u></u>		

Source: City of Oakdale

Table A-11
Oakdale Annual Report
Fire Fee Fund Summary (FY 2022-23)

Item	
Revenues	
Interest Income	-
Development Fees	\$68,618
Total	\$68,618
Expenditures	
Loan Repayments	-
Capital Improvements	-
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	-
Revenues Over (Under) Expenditures	\$68,618
Beginning Balance [1]	(\$578,246)
Ending Balance [1]	(\$509,628)

Source: City of Oakdale

[1] Negative balance reflects debt owed on the existing
S. Willowood Drive fire station.

Table A-12
Oakdale Annual Report
Fire Expenditures (FY 2022-23)

Improvement Name	FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures	\$0	n/a	n/a
Total Capital Expenditures	\$0		

Source: City of Oakdale

Table A-13
Oakdale Annual Report
Parks Fee Fund Summary (FY 2022-23)

Item	
Revenue	
Interest Income	\$64,777
Unrealized Gain (Losses)	(\$57,226)
State Grants	-
Development Fees	\$386,410
Total	\$393,961
Expenditures	
Loan Repayments	-
Capital Improvements	
Greger Basin Master Plan	\$19,358
Gymnasium Design	\$2,755
Fish Park Tennis Courts	\$104,127
Interfund Transfers	-
Other Expenditures	
Improvements to Land	\$738
Total Expenditures	\$126,978
Revenues Over (Under) Expenditures	\$266,983
Beginning Balance	\$4,640,820
Ending Balance	\$4,907,803
Less Reserved [1]	(\$145,594)
Unreserved Balance	\$4,762,209

Source: City of Oakdale

[1] Less reserved for loan to redevelopment agency.

Table A-14
Oakdale Annual Report
Parks Expenditures (FY 2022-23)

Improvement Name		FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures				
Greger Basin Master Plan	[1]	\$19,358	\$7,495,110	0%
Gymnasium Design	[1]	\$2,755	\$7,495,110	0%
Fish Park Tennis Courts		\$104,127	\$176,400	59%
Total Capital Expenditures		\$126,240		
Other Expenditures				
Improvements to Land		\$738	n/a	n/a

Source: City of Oakdale

[1] The Greger Basin Master Plan and Gymnasium design are both a part of what was originally identified as the "Bridle Ridge Community Park - Greger & Branding Iron" in the City's CIP.

Table A-15
Oakdale Annual Report
General Government Fee Fund Summary (FY 2022-23)

Item	
Revenue	
Interest Income	\$4,913
Unrealized Gains (Losses)	(\$5,221)
Development Fees	\$59,639
Total	\$59,331
Expenditures	
Loan Repayments	-
Capital Improvements	
FCB Homes Reimbursement	\$7,435
Interfund Transfers	-
Other Expenditures	-
Total Expenditures	\$7,435
Revenues Over (Under) Expenditures	\$51,896
Beginning Balance	\$332,630
Ending Balance	\$384,526

Source: City of Oakdale

Table A-16
Oakdale Annual Report
Government Expenditures (FY 2022-23)

Improvement Name		FY 2022/23	Total Project Costs	2022/23 Impact Fee Expenditures as a % of Total Project Costs
Capital Expenditures				
FCB Homes Reimbursement	[1]	\$7,435	\$4,227,553	0%
Total Capital Expenditures		\$7,435		

Source: City of Oakdale

[1] Reimbursement to Frontier Land Companies, doing business as FCB Homes, for improvements associated with West F Street, as outlined in FCB Homes' Reimbursement Agreement, dated September 5, 2012, and the First Addendum, adopted by the City Council September 21, 2015. Total reimbursment owed is equal to \$4,227,552.57.